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Case Number: 24STCV10579 Hearing Date: August 18, 2026 Dept: 408

1.

Plaintiff/Cross-Defendant Shianne Hollander's Motion to
Compel Further Responses to Requests for Production of Documents, Set Two, and
Request For Sanctions as to Defendant/Cross-Complainant McGriff Insurance
Services is CONTINUED.

2.

Plaintiff/Cross-Defendant Shianne Hollander's Motion to
Compel Further Responses to Requests for Production of Documents, Set Two, and
Request For Sanctions as to Defendant Michael Martini is CONTINUED.

3.

Plaintiff/Cross-Defendant Shianne Hollander's Motion to
Compel Further Responses to Requests for Production of Documents, Set Two, and
Request For Sanctions as to Defendant Michael Breedlove is CONTINUED.

4.

Plaintiff/Cross-Defendant Shianne Hollander's Motion to
Compel Further Responses to Requests for Production of Documents, Set Two, and
Request For Sanctions as to Defendant Mark Russ is CONTINUED.

5.

Plaintiff/Cross-Defendant Shianne Hollander's Motion to
Compel Further Responses to Form Interrogatories, Set Two, and Request For
Sanctions as to Defendants Mark Russ, Michael Breedlove, and Michael Martini is
CONTINUED.

I.

BACKGROUND

On April 26, 2024, Plaintiff Shianne Hollander ("Hollander") filed a complaint against Defendants McGriff Insurance Services ("McGriff"), Truist Insurance Holdings, LLC ("Truist"), Mark Russ ("Russ"), Michael Breedlove ("Breedlove") and Michael Martini ("Martini") alleging causes of action for:

1. Fraud;
2. Negligent
Misrepresentation;
3. Breach of
Contract;
4. Gender
Discrimination; and
5.
Harassment/Hostile Work Environment.

On June 26, 2024, Hollander filed a First Amended Complaint ("FAC") alleging causes of action for:

1.
Fraud;
2.
Negligent
Misrepresentation;
3.
Breach
of Contract;
4.
Gender
Discrimination;
- 5.

Harassment/Hostile
Work Environment; and

6.
Retaliation.

On July 30, 2024, McGriff filed a Notice of Removal.

On October 16, 2024, the court received a Notice of
Remand from Federal Court.

On November 8,
2024, Hollander filed a Second Amended Complaint ("SAC") against McGriff, Russ,
Breedlove, and Martini (collectively, "Defendants").

On January 24,
2025, Defendants filed an answer to Hollander's SAC.

On February 3,
2025, Defendants filed an amended answer to Hollander's SAC.

On April 25, 2025,
McGriff filed a cross-complaint against Hollander alleging causes of action
for:

1.
Breach
of Contract; and

2.
Conversion.

On April 28, 2025, Hollander filed an answer to
McGriff's cross-complaint.

On January 13,
2026, the court granted Hollander's Motion for Leave to Amend Complaint.

On January 20,
2026, Hollander filed an Amendment to the Complaint naming Does 1 and 2 as

Truist Financial Corporation ("Truist Corporation") and Truist Insurance Holdings, LLC ("Truist LLC"), respectively.

On January 20, 2026, the court denied Defendants' Motions for Summary Adjudication.

On February 19, 2026, the court granted On January 13, 2026, the court granted Hollander's Motion for Leave to Amend.

On February 20, 2026, Hollander filed a Third Amended Complaint ("TAC") alleging causes of action for:

1. Fraud;
2. Negligent
Misrepresentation;
3. Breach of
Contract;
4. Gender
Discrimination;
5.
Harassment/Hostile Work Environment;
6. Retaliation;
7. Discrimination
on the Basis of Disability;
8. Hostile Work
Environment and Harassment Due to Disability;
9. Failure to
Accommodate Disability;
10. Failure to

Engage in the Interactive Process;

11. Intentional

Infliction of Emotional Distress;

12. Failure to

Prevent Discrimination, Harassment and Retaliation; and

13. Negligent

Hiring, Supervision, and Retention.

On March 24, 2026,

Defendants filed individual answers to Hollander's TAC.

On April 20, 2026,

Truist Corporation and Truist LLC filed individual answers to Hollander's TAC.

On May 12, 2026,

Hollander filed an Amendment to the Complaint naming Doe 3 as Truist Bank.

On June 25, 2025,

Truist Bank filed an answer to Hollander's TAC.

On July 1, 2026, Hollander filed this Motion to Compel Further Responses to Requests for Production of Documents, Set Two, and Request for Sanctions as to McGriff ("McGriff RPDs Motion"); Motion to Compel Further Responses to Requests for Production of Documents, Set Two, and Request for Sanctions as to Martini ("Martini RPDs Motion"); Motion to Compel Further Responses to Requests for Production of Documents, Set Two, and Request for Sanctions as to Breedlove ("Breedlove RPDs Motion"); Motion to Compel Further Responses to Requests for Production of Documents, Set Two, and Request for Sanctions as to Russ ("Russ RPDs Motion"); and Motion to Compel Further Responses to Form Interrogatories, Set Two, and Request for Sanctions as to Russ, Breedlove, and Martini ("FROGs Motion"). On July 16 and August 5, 2026, Defendants filed oppositions. On August 11, 2026, Hollander filed replies.

II.

MOTION TO COMPEL FURTHER RESPONSES TO
REQUESTS FOR PRODUCTION OF DOCUMENTS, SET TWO, AS TO MCGRIFF

A.

Legal

Standard

On receipt of a response to form interrogatories, special interrogatories, and/or demand requests, the propounding and/or demanding party “may move for an order compelling further response” if: (1) the response is evasive or incomplete; (2) the representation of inability to comply is inadequate, incomplete, or evasive; or (3) the objection is without merit or too general. (Code Civ. Proc., §§ 2030.300, subd. (a); 2031.310, subd. (a).)

The moving party must demonstrate a “reasonable and good faith attempt” at an informal resolution of each issue presented. (Code Civ. Proc., §§ 2016.040; 2033.290, subd. (b)(1).) “In lieu of a separate statement required under the California Rules of Court, the court may allow the moving party to submit a concise outline of the discovery request and each response in dispute.” (Code Civ. Proc., § 2033.290, subd. (b)(2).)

Notice of the motion must be provided “within 45 days of the service of the verified response, or any supplemental verified response, or any specific later date to which the requesting party and the responding party have agreed in writing . . .” (Code Civ. Proc., § 2030.300, subd. (c).)

The responding party has the burden of justifying the objections to the requests. (Coy v. Superior Court (1962) 58 Cal.2d 210, 220-221.)

The court must impose monetary sanctions against any party who unsuccessfully makes or opposes a motion to compel further unless the court finds that the one subject to sanction acted with substantial justification or that other circumstances make the imposition of sanctions unjust. (Code Civ. Proc., § 2030.300, subd. (d); Code Civ. Proc., § 2031.310, subd. (h).)

B.

Discussion

Hollander seeks to compel McGriff to provide further responses to Requests for Production of Documents, Set Two, propounded on December 18, 2025. (McGriff RPDs Motion, at pp. 2-3; Zilifyan Decl., ¶ 2, Exh. 1.) McGriff provided initial responses on March 31, 2026. (McGriff RPDs Motion, at p. 3; Zilifyan Decl., ¶

3, Exh. 2.) Hollander specifically requests further responses to RPDs Nos. 16-119 and 121-130. (McGriff RPDs Motion, at pp. 7-8.)

As an initial matter, in reply, Hollander represents that McGriff provided partial supplemental responses on July 24, 2026, to the RPDs at issue except for RPDs Nos. 70, 76, 77, 78, 95, 96, 116-119, and 121-130. (Reply, at p. 2.) The court finds that in order to address any remaining deficiencies as to the outstanding discovery, the parties must provide the court with a clear layout of the issues and cohesive arguments addressing these specific discovery requests. Accordingly, the court orders that the parties meaningfully meet and confer regarding RPDs Nos. 70, 76, 77, 78, 95, 96, 116-119, and 121-130 in an effort to reduce and clarify the issues to be determined by the court. The parties are then required to file supplemental briefs identifying any remaining disputes.

The court admonishes the parties for not drafting clear and concise briefs to efficiently review and rule on the issues. The court also denies Hollander's requests for sanctions in the amount of \$11,700.00 per RPDs motion as unreasonable and unwarranted due to the parties' lack of cooperation in resolving these matters without court intervention.

Accordingly, the motion is continued.

III.

MOTION TO COMPEL FURTHER RESPONSES TO
REQUESTS FOR PRODUCTION OF DOCUMENTS, SET TWO, AS TO MARTINI

A.

Legal
Standard

See Section II(A) above.

B.

Discussion

Hollander seeks to compel Martini to provide further responses to Requests for Production of Documents, Set Two, propounded on December 18, 2025. (Martini RPDs Motion, at p. 3; Zilifyan Decl., ¶ 2, Exh. 1.) Martini provided initial

responses on March 31, 2026. (Martini RPDs Motion, at p. 3; Zilifyan Decl., ¶ 3, Exh. 2.) Hollander specifically requests further responses to RPDs Nos. 9–16, 18–20, 24–25, 28–33, 38, 41, 46, 71, and 82–92. (Martini RPDs Motion, at p. 1.)

As an initial matter, in reply, Hollander represents that Martini provided partial supplemental responses on July 24, 2026, to the RPDs at issue except for RPDs Nos. 83, 84, and 85. (Reply, at p. 2.) For the same reasons stated above, the court orders the parties to meaningfully meet and confer as to the outstanding discovery in an effort to resolve such issue without court intervention. The parties are required to file supplemental briefing outlining any remaining discovery disputes in relation to RPDs Nos. 83, 84, and 85.

Accordingly, the motion is continued.

IV.

MOTION TO COMPEL FURTHER RESPONSES TO
REQUESTS FOR PRODUCTION OF DOCUMENTS, SET TWO, AS TO BREEDLOVE

A.

Legal
Standard

See Section II(A) above.

B.

Discussion

Hollander seeks to compel Breedlove to provide further responses to Requests for Production of Documents, Set Two, propounded on December 18, 2025. (Breedlove RPDs Motion, at p. 3; Zilifyan Decl., ¶ 2, Exh. 1.) Breedlove provided initial responses on March 31, 2026. (Breedlove RPDs Motion, at p. 3; Zilifyan Decl., ¶ 3, Exh. 2.) Hollander specifically requests further responses to RPDs Nos. 9–16, 18–25, 28–35, 38–44, 46, 48–50, 55–66, 71, 73–75, and 82–92. (Breedlove RPDs Motion, at p. 2.)

As an initial matter, in reply, Hollander represents that Breedlove provided partial supplemental responses on July 24, 2026, to the RPDs at issue except for RPDs Nos. 27, 83, 84, and

85. (Reply, at p. 2.) For the same reasons stated above, the court orders the parties to meaningfully meet and confer as to the outstanding discovery in an effort to resolve such issue without court intervention. The parties are required to file supplemental briefing outlining any remaining discovery disputes in relation to RPDs Nos. 27, 83, 84, and 85.

Accordingly, the motion is continued.

V.

MOTION TO COMPEL FURTHER RESPONSES TO
REQUESTS FOR PRODUCTION OF DOCUMENTS, SET TWO, AS TO RUSS

A.

Legal
Standard

See Section II(A) above.

B.

Discussion

Hollander seeks to compel Russ to provide further responses to Requests for Production of Documents, Set Two, propounded on December 18, 2025. (Russ RPDs Motion, at p. 3; Zilifyan Decl., ¶ 2, Exh. 1.) Russ provided initial responses on March 31, 2026. (Russ RPDs Motion, at p. 3; Zilifyan Decl., ¶ 3, Exh. 2.) Hollander specifically requests further responses to RPDs Nos 9–37, 40, 42–53, 72–74, 57–68, 75–81 and 84–94. (Russ RPDs Motion, at p. 1.)

As an initial matter, in reply, Hollander represents that Russ provided partial supplemental responses on July 24, 2026, to the RPDs at issue except for RPDs Nos. 85, 86, and 87. (Reply, at p. 2.) For the same reasons stated above, the court orders the parties to meaningfully meet and confer as to the outstanding discovery in an effort to resolve such issue without court intervention. The parties are required to file supplemental briefing outlining any remaining discovery disputes in relation to RPDs Nos. 85, 86, and 87.

Accordingly, the motion is continued.

VI.

MOTION TO COMPEL FURTHER RESPONSES TO FORM
INTERROGATORIES, SET TWO, AS TO DEFENDANTS

A.

Legal

Standard

See Section II(A) above.

B.

Discussion

Hollander seeks to compel Russ, Breedlove, and Martini (“Responding Defendants”) to provide further responses to Form Interrogatories – General, Set Two, propounded on December 18, 2025. (FROGs Motion, at p. 3; Zilifyan Decl., ¶ 2, Exh. 1.) Breedlove and Martini provided initial responses on March 31, 2026. (FROGs Motion, at p. 3; Zilifyan Decl., ¶ 3, Exh. 2.) Russ did not serve any timely responses. (Ibid.) Hollander specifically requests further responses to FROG No. 15.1 which requires a responding party who denies any request for admission to identify all facts, witnesses, and documents supporting each denial. (FROGs Motion, at p. 1.)

As an initial matter, the court notes that Russ provided initial responses to Hollander’s FROGs on March 3, 2026. (Opp., at p. 4; Presser Decl., ¶ 7, Exh. C.) On May 4, 2026, Responding Defendants served supplemental responses to FROG No. 15.1. (Opp., at p. 4; Presser Decl., ¶ 8, Exh. D.) On June 16, 2026, Responding Defendants served further supplemental responses to FROG No. 15.1. (Opp., at p. 5; Presser Decl., ¶ 11-12, Exhs. F-H.) Russ also served his Form Interrogatory responses and second supplemental responses on July 8, 2026. (Id., ¶ 18, Ex. K.)

It appears that Hollander declined to further meet and confer regarding the supplemental responses provided as to FROG No. 15.1 prior to filing this motion. (Opp., at pp. 5-6.) The court orders that the parties meaningfully meet and confer regarding the purported deficiencies as to FROG No. 15.1 in an effort to reduce and clarify the issues to be addressed by the court. The parties are required to file supplemental briefing outlining any remaining discovery disputes regarding FROG No. 15.1.

Accordingly, the motion is continued.

VII.

CONCLUSION

1.

Plaintiff/Cross-Defendant Shianne Hollander's Motion to Compel Further Responses to Requests for Production of Documents, Set Two, and Request For Sanctions as to Defendant/Cross-Complainant McGriff Insurance Services is CONTINUED.

2.

Plaintiff/Cross-Defendant Shianne Hollander's Motion to Compel Further Responses to Requests for Production of Documents, Set Two, and Request For Sanctions as to Defendant Michael Martini is CONTINUED.

3.

Plaintiff/Cross-Defendant Shianne Hollander's Motion to Compel Further Responses to Requests for Production of Documents, Set Two, and Request For Sanctions as to Defendant Michael Breedlove is CONTINUED.

4.

Plaintiff/Cross-Defendant Shianne Hollander's Motion to Compel Further Responses to Requests for Production of Documents, Set Two, and Request For Sanctions as to Defendant Mark Russ is CONTINUED.

5.

Plaintiff/Cross-Defendant Shianne Hollander's Motion to Compel Further Responses to Form Interrogatories, Set Two, and Request For Sanctions as to Defendants Mark Russ, Michael Breedlove, and Michael Martini is CONTINUED.